

Court No. - 21

Case :- WRIT - C No. - 4046 of 2023

Petitioner :- Ram Prakash Gupta

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Alauddin,Fakhruddin

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

List as fresh on 15.2.2023, showing the name of Sri C.S. Singh, as counsel for the respondent-Electricity Department.

Counsel for the petitioner shall serve a notice in writing to Sri C.S. Singh, Advocate informing him about the order passed today.

Order Date :- 6.2.2023

D. Tamang

(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)

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Counsel for Respondent :- C.S.C., Chandra Shekhar Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

The instant petition has been filed challenging the demand notice dated 28.12.2022 issued by the respondent no.4 in a case of theft of electricity.

Sri Chandra Shekhar Singh, learned counsel appearing for the respondent Electricity Department states that the impugned recovery has been withdrawn and that the respondents will pass a fresh order after following the procedure prescribed under the Electricity Supply Code, 2005.

Accordingly, the petition is disposed of with liberty to the respondents to pass fresh order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

Order Date :- 15.2.2023

Abhishek Gupta

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)